DIVISION BENCH ITEM NO.107

NATIONAL COMPANY LAW TRIBUNAL
ALLAHABAD BENCH
PRAYAGRAJ
CP (CAA) No.25/ALD/2023 IN CA (CAA) No.23/ALD/2023
(Second Motion)

CORAM:

1. **SHRI PRAVEEN GUPTA,**
   HON'BLE MEMBER (JUDICIAL)
2. **SHRI ASHISH VERMA,**
   HON'BLE MEMBER (TECHNICAL)

Date of Order: 21st March, 2024

Attendance-Cum-Order Sheet of the Hearing.

NAME OF THE COMPANY	**AMRIT AGRO INDUSTRIES LIMITED WITH AMRIT CORP. LTD.**
UNDER SECTION	**230/232 OF COMPANIES ACT, 2013**

COUNSEL APPEARED THROUGH PHYSICAL/ VIRTUAL HEARING:

Sh. Anil Kumar, PCS *: For the Petitioner*

Sh. Ajeet Kumar Singh, AOL. *: For the OL/ALD*

Sh. Krishna Dev Vyas, Adv. *: For the ROC*

Sh. Gaurav Mahajan, Sr.S.C. *: For the IT Department*

ORDER

1. Ld. Counsel representing the Petitioner relies upon a supplementary affidavit filed on 7th March, 2024, which is filed on the e-portal of this Tribunal. This affidavit has been filed in response to the Income Tax Department report dated 24th January, 2024.

2. In terms of this supplementary affidavit dated 7th March, 2024, the Ld. Counsel representing the Petitioner states that in terms of Para Nos.5 & 6 undertaking has been given on behalf of the Petitioner-Companies to abide by the outstanding tax liability against the petitioner-companies wherein the appeal has been filed before the Appellate Authority.

-Sd- ***-Sd-***

3. The Reports on behalf of the ROC as well as on behalf of the RD have also been received.

4. Ld. Counsel representing the Petitioner states that there is no necessity to file the undertaking/response to those reports filed by ROC/ RD in view of the fact that there are no adverse observations made therein.

5. The affidavit with respect to the compliance of publishing the notice and to the effect that no response has been received after publication in the newspapers has also been filed *vide* Diary No.479 of 16th February, 2024.

6. Matter heard. Order reserved.

-Sd-
(Ashish Verma)
Member (Technical)

-Sd-
(Praveen Gupta)
Member (Judicial)

21st March, 2024

Avaneesh Kumar Singh
(Stenographer)